

SUPREME COURT OF NEW YORK  
COUNTY OF KINGS

\_\_\_\_\_  
SHAMECCA HEYWOOD

Plaintiff(s)

Index No.:

-against-

P.O. JOSE RIVERA Shield No. 16290, and  
P.O. JANER MARSH, Shield No. 6802

Defendant(s)

\_\_\_\_\_  
**SUMMONS IN A CIVIL ACTION**

To the above named Defendants:

**YOU ARE HEREBY SUMMONED** to answer the complaint in this action and to serve a copy of your answer on the Plaintiff/Plaintiff's Attorney(s) within twenty (20) days after service of this summons, exclusive of the day of service, where service is made upon you personally within the state, or within thirty (30) days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, N.Y.  
March 17, 2023

Yours etc.,

LAW OFFICE OF MICHAEL H. JOSEPH, P.L.L.C.

BY:

  
Michael H. Joseph, Esq.

18 West 33<sup>rd</sup> Street, Suite 400

New York, N.Y. 10001

Tel: 212-858-0503

Email: Michael@newyorktriallawyers.org

SUPREME COURT OF NEW YORK  
COUNTY OF KINGS

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SHAMECCA HEYWOOD

Plaintiff(s)

Index No.:

-against-

**VERIFIED COMPLAINT**

P.O. JOSE RIVERA Shield No. 16290, and  
P.O. JANER MARSH, Shield No. 6802

Defendant(s)

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**JURY TRIAL DEMANDED**

Plaintiff, by and through her undersigned attorneys, Law Office of Michael H. Joseph, PLLC, as for her complaint against the Defendants states:

1. At all relevant times herein, plaintiff, Shamecca Heywoods was and is a resident of the State of New York, County of Kings.
2. At all relevant times herein, Defendant Jose Rivera, Shield No. 16290, (Hereinafter “Rivera”) was and is a resident of the State of New York, County of Kings.
3. At all relevant times herein, Defendant Janer Marsh, Shield No. 6802, (Hereinafter “Marsh”) was and is a resident of the State of New York, County of Kings.
4. On or about July 15, 2022 and at all times relevant herein, Rivera was a duly sworn police officer employed by the City of New York.
5. On or about July 15, 2022 and at all times relevant herein, Marsh was a duly sworn police officer employed by the City of New York.
6. On or about July 15, 2022 and at all times relevant herein, Rivera was acting under the color of law and acting in the course and scope of his employment with the City of

New York.

7. On or about July 15, 2022 and at all times relevant herein, Marsh was acting under the color of law and acting in the course and scope of her employment with the City of New York.

**COUNT I: FALSE ARREST UNDER 42 U.S.C. § 1983**

8. Plaintiff repeats, reiterates, and realleges each and every allegation contained above with the same force and effect as if fully set forth herein at length.
9. On or about July 15, 2022 at approximately 9:25 a.m., Plaintiff was lawfully in the vicinity of Vicinity of Kent Avenue and N. 12th Street, Brooklyn, N.Y., and after finishing her work shift, was speaking with a co-worker, whom she encountered enroute to a bus stop.
10. At the aforesaid date, time, and place, Plaintiff had not committed any crime nor was there any reasonable suspicion to believe that Plaintiff had committed a crime.
11. At the aforementioned time, date, and place, Plaintiff was approached by Defendants Rivera and Marsh, who unlawfully seized, searched, and falsely arrested Plaintiff for harassment of Rivera and/or Marsh, obstructing governmental administration, and assault of Rivera and/or Marsh.
12. At the aforesaid date, time and place, Plaintiff was merely talking with her co-worker and began to walk away as the Defendants approached, at which point, the defendants violently grabbed the Plaintiff, and arrested her, even though she had not committed any acts which even arguably constituted obstruction of governmental administration, nor did she harass or assault anyone.

13. At the aforementioned time, date, and place, there was no probable cause or reasonable suspicion to believe that Plaintiff committed the aforesaid crimes.
14. At the aforesaid date, time and place, Defendants fabricated allegations that Plaintiff intentionally placed herself between another police officer and a third party arrestee to interfere with the arrest of said person, and that Plaintiff struck the officer with a closed fist.
15. At no time did Plaintiff perform any actions consistent with the aforesaid fabricated allegations.
16. At all times relevant herein, Defendants fabricated the aforesaid allegations to justify their inappropriate use of force against the Plaintiff which occurred without cause or justification.
17. Defendants arrested, confined and caused Plaintiff to be deprived of her freedom and liberty, all without a cause, excuse, or justification and without Plaintiff's consent.
18. Defendant Rivera's actions violated clearly established rights.
19. Defendant Marsh's actions violated clearly established rights.
20. No reasonable officer in the position of Rivera and/or Marsh would have believed the actions of the Defendants herein were objectively reasonable.
21. As a direct and proximate result of the foregoing acts committed by the Defendants, Plaintiff suffered severe emotional harm, great humiliation, ridicule, mental anguish, depression, mental shock, mental trauma, and pain and was caused to be deprived of her freedom.
22. By making the aforesaid arrest of the Plaintiff, without probable cause, justification and privilege, Defendants' actions violated the Plaintiff's civil rights, including but not

limited to her rights under the Fourth, Eighth, and Ninth Amendments of the United States Constitution, including but not limited to, the right not to be unreasonably seized and searched, as well as his right to personal liberty.

23. As a direct and proximate result of the foregoing acts committed by the Defendants, Plaintiff suffered severe emotional harm, great humiliation, ridicule, mental anguish, depression, mental shock, mental trauma, and pain and was caused to be deprived of the rights and immunities guaranteed by the United States Constitution, as well as the constitution of the State of New York.
24. Defendants are jointly and severally liable to Plaintiff pursuant to 42 U.S.C. § 1983.
25. The amounts sought herein exceed the jurisdictional limits of all courts of inferior jurisdiction.

**COUNT II: MALICIOUS PROSECUTION AND DEPRIVATION OF DUE PROCESS RIGHTS BASED UPON FABRICATION OF EVIDENCE UNDER 42 USC § 1983**

26. Plaintiff repeats, reiterates, and realleges each and every allegation contained above with the same force and effect as if fully set forth herein at length.
27. On or about July 15, 2022, Defendants fabricated evidence against the Plaintiff by creating police paperwork, which was forwarded to the prosecutor, which falsely documented that Plaintiff placed herself between a police officer and another individual to prevent said individual's arrest and that Plaintiff punched Marsh.
28. Defendants forwarded the aforesaid statement with the falsified information to the prosecutor with knowledge of its falsity.
29. On July 16, 2022, Defendants knowingly and intentionally provided false information to the prosecutor in that Rivera signed an accusatory instrument and/or felony complaint in

- which he falsely stated that the Plaintiff placed herself between a police officer and another individual to prevent said individual's arrest and that Plaintiff punched Marsh and further falsely informed the prosecutor that Plaintiff admitted to hitting Marsh.
30. At all times relevant herein, Marsh, knew that the aforesaid allegations against the Plaintiff were false, and Marsh failed to make a full and complete disclosure of the facts, by failing to document what actually occurred, in that Plaintiff did not interfere with any arrest, nor did she strike Marsh and in failing to document same, withheld said exculpatory information from the prosecutor.
31. By and through the foregoing, Defendants initiated a prosecution against the Plaintiff by preparing police paperwork which contained a false, contrived and fabricated version of the events, as well as by preparing, signing and swearing to a felony complaint, and/or accusatory information against the Plaintiff which initiated a prosecution against the Plaintiff for the aforesaid crimes.
32. At all times relevant herein, there was no probable cause to believe that Plaintiff had committed any of the aforesaid charges which were lodged against the Plaintiff.
33. At all times relevant herein, there was no probable cause to believe that the prosecution against the Plaintiff could succeed.
34. After initiating the prosecution, Defendants continued the prosecution by failing to disclose to the prosecutor that Plaintiff never interfered with any arrest and that she never punched March.
35. The aforementioned false representations, misconduct and failure to make a full and complete disclosure of the facts by Defendants prevented the prosecutor from exercising independent judgment.

36. As a result of the aforementioned felony complaint, Plaintiff was arraigned on the charges.
37. As more fully set forth herein, all defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff.
38. At all times mentioned herein, there was a lack of probable cause to commence and continue criminal proceedings against plaintiff.
39. At all times mentioned, herein defendants acted with malice in initiating and continuing the criminal proceedings against plaintiff.
40. The aforementioned actions were done by Defendants with Malice and to frame Plaintiff for crimes which she did not commit and to deny her the rights and privileges guaranteed by the U.S. Constitution and the Constitution of the State of New York and Defendants further violated Plaintiff's Due Process Rights by fabricating a crime which never occurred.
41. Defendants continued criminal proceedings against plaintiff despite a lack of credible evidence against her, and notwithstanding their knowledge that said proceedings would jeopardize plaintiff's liberty, well-being, safety and constitutional rights.
42. On January 27, 2023 the charges against the Plaintiff were dismissed and resolved in her favor.
43. The aforementioned dismissal was a favorable termination of the charges against the Plaintiff.
44. Defendants' actions violated the Plaintiff's civil rights including but not limited to her rights under the Fourth, Fifth, Sixth and Fourteenth Amendments of the United States Constitution including but not limited to the right to due process, the right not to be

unreasonably seized, the right to a fair trial, the right not to be prosecuted with the use of fabricated evidence, the right not to be prosecuted without probable cause, and defendants further maliciously prosecuted Plaintiff, denied him his due process, denied her a fair trial, unreasonably seized the Plaintiff and violated her civil and constitutional rights.

45. Defendants' actions violated clearly established rights.
46. Defendants' action shocks the conscience.
47. No reasonable officer in the position of the defendants would have believed the actions of the defendants herein was objectively reasonable.
48. At all times relevant herein defendants lacked probable cause to continue criminal proceedings against plaintiff, acted with malice in continuing criminal proceedings against plaintiff, misrepresented and falsified evidence throughout all phases of the criminal proceeding, and failed to make a full statement of facts known throughout all phases of the proceedings, all of which was done to secure the conviction of the Plaintiff for an attempted robbery and assault which he did not commit.
49. At all times relevant herein defendants lacked probable cause to continue criminal proceedings against plaintiff, acted with malice in continuing criminal proceedings against plaintiff, misrepresented and falsified evidence throughout all phases of the criminal proceeding, and/or failed to make a full statement of facts known throughout all phases of the proceedings, all of which was done to secure the conviction of the Plaintiff for the charges, all of which he did not commit.
50. As a direct and proximate result of the foregoing acts committed by the defendants, the Plaintiff was deprived of her liberty.



51. By and through the foregoing, Defendants caused Plaintiff to be maliciously prosecuted without probable cause and without justification or privilege.
52. That Defendants' actions violated Plaintiff's rights under the U.S. Constitution as well as the Constitution of the State of New York.
53. The aforementioned actions of the Defendants proximately caused Plaintiffs damages and injuries complained of herein.
54. The aforesaid acts of concealment, fabrication and failure to make a full and complete statement of the facts and the false attribution to Plaintiff of a fabricated inculpatory statement, caused the prosecution to continue, caused Plaintiff to suffer incarceration and detention in violation of her rights.
55. Plaintiff suffered great humiliation, ridicule, and mental anguish, depression, mental shock, mental trauma, emotional and mental suffering as a result of his unlawful prosecution.
56. Defendants are jointly and severally liable for the damages sought herein.
57. Defendants' actions violated Plaintiff's rights under the Fourteenth and Fourth Amendments of the United States Constitution.

**COUNT III: ATTORNEYS FEES AND COSTS UNDER 42 U.S.C. § 1988**

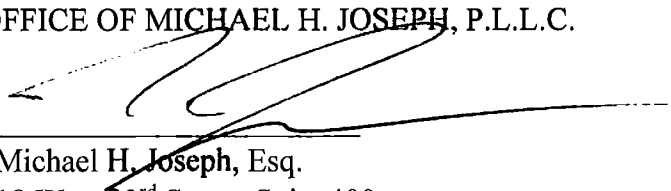
58. Plaintiff repeats, reiterates, and realleges each and every allegation contained above with the same force and effect as if fully set forth herein at length
59. The foregoing events constitute violations of Plaintiff's statutory and constitutional rights, thereby entitling her to attorneys fees, costs and disbursements as permitted by 42 U.S.C. § 1988.

WHEREFORE, Plaintiff demands that judgment be entered for Plaintiff against Defendants in an amount to be determined by the trier of fact for compensatory and punitive damages, plus attorney's fees, interest, costs and disbursements, along with whatever further relief the Court deems just and proper.

Dated: New York, N.Y.  
March 17, 2023

Yours etc.,

LAW OFFICE OF MICHAEL H. JOSEPH, P.L.L.C.

BY: 

Michael H. Joseph, Esq.  
18 West 33<sup>rd</sup> Street, Suite 400  
New York, N.Y. 10001  
Tel: 212-858-0503  
Email: Michael@newyorktriallawyers.org

SUPREME COURT OF NEW YORK  
COUNTY OF KINGS

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SHAMECCA HEYWOODS,

Plaintiff(s),

Index No.:

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P.O. JOSE RIVERA Shield No. 16290, P.O. JANER  
MARSH, Shield No. 6802,

Defendant(s).  
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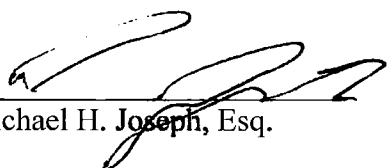
**VERIFICATION**

I, Michael H. Joseph, Esq. the undersigned, an attorney admitted to practice in the State of New York, state that I am a member of the LAW OFFICE OF MICHAEL H. JOSEPH, P.L.L.C. attorneys of records for Plaintiff in the within action; I have read the foregoing **VERIFIED COMPLAINT** and know the contents thereof; the same are true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matter I believe them to be true. The reason this verification is made by me and not by Plaintiff is because the Plaintiff currently is not in the county in which my office is located.

The grounds of my belief as to all matters not stated upon my own knowledge are the reports, records, memoranda in my file together with my own investigation.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York,  
March 17, 2023

  
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Michael H. Joseph, Esq.

SUPREME COURT OF NEW YORK  
COUNTY OF KINGS

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SHAMECCA HEYWOOD

Plaintiff(s)

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P.O. JOSE RIVERA Shield No. 16290,  
P.O. JANER MARSH, Shield No. 6802  
Defendant(s)

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**NOTICE OF ELECTRONIC FILING AVAILABILITY**

PLEASE TAKE NOTICE that plaintiff(s)/defendant(s) in the case captioned above consents and intends that this matter shall proceed as an electronically-filed case in the Filing by Electronic Means System ("FBEM") in accordance with the procedures therefor, described below. Service of papers by electronic means cannot be made upon a party unless that party consents to use of the system. As soon as possible after service of this Notice, each party served must indicate whether it consents.

**General Information**

In New York State, actions may be commenced and cases processed by means of the FBEM system in (1) tax certiorari claims in the Supreme Court in New York City and in Monroe, Westchester, and Suffolk Counties;(2) tort claims, and commercial claims in the Commercial Division, in the Supreme Court in New York City and in Albany, Monroe, Nassau, Suffolk, and Westchester counties; (3) commercial claims in the Commercial Division of Supreme Court, and proceedings in Surrogate's Court, in Erie County; and (4) selected claims against the State of New York.

Electronic filing offers significant benefits for attorneys and litigants, permitting papers to be filed with the court and served in a simple, convenient and expeditious manner. FBEM case documents are filed with the court by filing on the FBEM Website (go to "E-Courts" at [www.nycourts.gov](http://www.nycourts.gov)), which can be done at any time of the day or night. The documents are deemed filed when they are received by the Unified Court System server. The use of FBEM is governed by Section 202.5-b (Supreme Court), and 206.5 and 206.5-aa (Court of Claims) of the Uniform Rules for the Trial Courts.

### Instructions

1. The service of this Notice constitutes a statement of intent by the undersigned that the FBEM system be used in this case. When an action or proceeding is being commenced by means of the system, this Notice must accompany service of the initiating papers.

2. As soon as possible after service of this Notice, the party served shall advise all parties whether it will agree to have the matter proceed by FBEM. Where the party served agrees, that party must, as soon as possible after service, file with the court and serve on all parties a Consent to FBEM. A Consent form can be found in the "Forms" Section of the FBEM Website. The form and other aspects of FBEM are explained in the User's Manual, available on the Website. When this Notice Regarding Availability is served with papers initiating a lawsuit, the consent must be filed prior to service of or with the responsive pleadings or motion addressed to the pleadings.

3. Once parties agree that the case will be subject to FBEM, each must PROMPTLY submit a Filing User Registration form (see the "Forms" section of the Website) to obtain the confidential Filing User

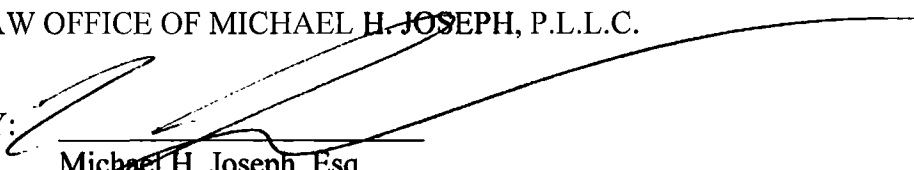
Identification Number and Password necessary to use the system. A party represented by an attorney who has previously registered as a Filing User in another case may file and serve the Consent to FBEM electronically by checking the designated box and following the instructions on the FBEM Website.

4. For additional information about FBEM, see the User's Manual and Frequently Asked Questions on the Website or contact the court in question or the FBEM Resource Center (at 646-386-3033).

Dated: New York, NY  
March 17, 2023

Yours etc.,

LAW OFFICE OF MICHAEL H. JOSEPH, P.L.L.C.

BY: 

Michael H. Joseph, Esq.  
18 West 33<sup>rd</sup> Street, Suite 400  
New York, N.Y. 10001  
Tel: 212-858-0503  
Email: Michael@newyorktriallawyers.org